

Tentative Rulings for September 1, 2026

Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2505420	PEREZ V. KERRN	CMC & OSC

Tentative Ruling: Continue to March 23, 2027.

2.

CASE #	CASE NAME	HEARING NAME
CVME2509464	KIESAU V. SCHWERTFEGER	CMC & OSC

Tentative Ruling: The Property is now in foreclosure. Hearing required.

3.

CASE #	CASE NAME	HEARING NAME
CVME2600128	ARMANI VS OSR2 R&V INVESTORS LLC, TMW, OAK SPRINGS 2 DEL, LLC	DEMURRERS, CMC, AND OSC

Tentative Ruling: Sustain both demurrers without leave to amend for failure to state facts sufficient and uncertainty. Sanction Plaintiff \$250 on the OSC for Proof of Service, payable within 30 days. Moving party to submit a proposed judgment order within 5 days. Continue the CMC and OSC to December 8, 2026. Set an additional OSC re: failure to prosecute as to the OSR2 and Greystar entities, with sanctions not to exceed \$1,500 and/or striking the complaint.

4.

CASE #	CASE NAME	HEARING NAME
CVME2607026	RODRIGUEZ VS MURRIETA DEVELOPMENT COMPANY, INC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Grant the motion compelling arbitration of Plaintiff's individual PAGA claims, only. The entire action is stayed, pending arbitration. The delegation clause is clear and unmistakable, and Plaintiff has failed to show that it is revocable under state unconscionability principles. Therefore, the Court's inquiry stops here and any other challenges to the validity and enforceability of the arbitration agreement is for the arbitrator to decide.